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EVA ROJAS FLORES v. LOS

ANGELES UNIFIED SCHOOL DISTRICT, ET AL.

CASE NO.: 25NWCV03975

HEARING: 06/30/2026 @ 9:30 AM

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TENTATIVE ORDER

Defendant Los Angeles Unified School District's demurrer to the first cause of action in the first amended complaint is SUSTAINED with 30 days LEAVE TO AMEND.

Moving party to give notice.

Defendant Los Angeles Unified School District (Defendant or LAUSD) demurs to the first amended complaint (FAC).

Background

On November 7, 2025, Plaintiff Eva Rojas Flores, a minor by and through her Guardian Ad Litem, Laura Flores (Plaintiff) filed this action against Defendants LAUSD, Chester W. Nimitz Middle School, Angelica Carpio, and Does 1 through 100. On January 28, 2026, Plaintiff filed the operative FAC against LAUSD, Angelica Carpio, and Does 1 through 100.

The FAC alleges the following: on September 22, 2025, while Plaintiff was a sixth-grade middle school student enrolled at Nimitz Middle School, Plaintiff was walking toward the lunch pavilion when a group of students lead by Carpio approached Plaintiff from behind. (FAC, ¶ 16.) A verbal discussion began at which time a nearby school aide instructed the group to disburse. (FAC, ¶ 17.) The group grew, with other students recording the ordeal and instructing Carpio to batter Plaintiff. (FAC, ¶ 17.) The FAC alleges that once Plaintiff tried to walk away, "CARPIO pulled EVA's hair, slammed her to the ground, continuously punched her, repeatedly banged EVA's head on the concrete ground, and threw EVA's hearing aids to the ground, severely damaging them." (FAC, ¶¶ 18-19.) The FAC asserts four causes of action: (1) premises liability pursuant to Government Code sections 835 and 840 against LAUSD and Does 1 to 100; (2) failure of a school to provide adequate supervision of students as to LAUSD and Does 1 to 100; (3) negligence against Carpio and Does 1 to 100; and (4) battery as to Carpio and Does 1 to 100.

On March 26, 2026, Plaintiff dismissed this action as to Carpio without prejudice.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) In assessing a demurrer, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law." (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at p. 747.) A complaint will be upheld against a demurrer if it pleads facts sufficient to place the defendant on notice of the issues sufficient to enable the defendant to prepare a defense. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-50.)

"Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) A "[p]laintiff must show in what manner he can amend his complaint

and how that amendment will change the legal effect of his pleading.” (Ibid.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the demurring party meet and confer in person, by telephone, or by video conference at least five days before the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve a declaration stating either: (a) “The means by which the demurring party met and conferred...and that the parties did not reach an agreement resolving the objections raised in the demurrer” or (b) “[t]hat the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 430.41, subd. (a)(3).)

The parties adequately met and conferred. (Estrada Decl., ¶ 4.)

Discussion

Defendant demurs to the first cause of action for premises liability.

“A dangerous condition of public property ‘means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.’ (§ 830, subd. (a).) The elements for that cause of action are: ‘(1) a dangerous condition of public property; (2) a foreseeable risk, arising from the dangerous condition, of the kind of injury the plaintiff suffered; (3) actionable conduct in connection with the condition, i.e., either negligence on the part of a public employee in creating it, or failure by the entity to correct it after notice of its existence and dangerousness; (4) a causal relationship between the dangerous condition and the plaintiff’s injuries; and (5) compensable damage sustained by the plaintiff.’” (Toeppe v. City of San Diego (2017) 13 Cal.App.5th 921, 925-26.) “The existence of a dangerous condition ordinarily is a question of fact, but the issue may be resolved as a matter of law if reasonable minds can come to only one conclusion.” (Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1133.)

The FAC alleges that “the physical configuration of NIMITZ’s lunch area—including the fixed placement of lunch tables and surrounding fixtures, the layout of the lunch pavilion area, and the configuration of adjacent student walkways—created a funnel-like flow pattern and a recurring congestion chokepoint during lunch transition periods.” (FAC, ¶ 24.) Further, “this funnel/chokepoint condition of NIMITZ’s lunch area and walkways materially increased the danger faced by students on campus because it (1) forced students into close proximity in a congested travel path, (2) allowed groups of students to gather and move together rapidly through a narrowed corridor, and (3) increased the likelihood that confrontations would escalate into physical violence before staff could intervene.” (FAC, ¶ 25.) The FAC alleges that “the lunch-area configuration and table placement created a substantial risk of injury when the property was used with due care in a manner that was reasonably foreseeable—specifically, use by students moving in large numbers during scheduled lunch transitions.” (FAC, ¶ 28.)

Defendant first argues that the physical configuration of the lunch area does not create a substantial risk of injury when used with due care by students because it was at most congested and congestion is inherent in school transitions.

Taking the allegations as true, as required on demurrer, the Court finds that the FAC adequately pleads a dangerous condition. Defendant’s argument requires the Court to assume that the layout and resulting congestion cannot constitute a dangerous condition, which is not permitted on demurrer.

Next, the parties dispute the applicability of *Zelig*, supra, 27 Cal.4th at p. 1134. In *Zelig*, the Supreme Court of California notes the general rule “that ‘third party conduct by itself, unrelated to the condition of the property, does not constitute a “dangerous condition” for which a public entity may be held liable.’” (Ibid.) Moreover, “ ‘[i]f the risk of injury from third parties is in no way increased or intensified by any condition of the public property ... courts ordinarily decline to ascribe the resulting injury to a dangerous condition of the property. In other words, there is no liability for injuries caused solely by acts of third parties. [Citations.] Such liability can arise only when third party conduct is coupled with a defective condition of property.’” (Id., at p. 1137, citations omitted.)

Defendant argues that the FAC fails to plead that the lunch

pavilion area constituted a dangerous condition in the absence of third-party conduct by the alleged student perpetrators. Defendant argues that the FAC alleges that Plaintiff's injuries arose from the student pulling Plaintiff's hair, not from being trapped or unable to move due to the chokepoint condition.

In opposition, Plaintiff argues that the FAC does not allege that the assault constituted the dangerous condition, rather, it alleges that the physical configuration of the lunch area increased the likelihood that students would be surrounded and assaulted and that the staff would be limited in its ability to intervene. Plaintiff argues that Zelig is distinguishable. In Zelig, plaintiffs alleged a dangerous condition of public property after their mother was shot by her former husband at a courthouse. (Zelig, supra, 27 Cal.4th at p. 1118-19.) The Supreme Court of California concluded that the complaint failed to allege causation, reasoning that "the risk of injury was not increased or intensified by the condition of the property, and the necessary causal connection between the condition of the property and [the] crime was not present." (Id., at p. 1138.) Further, the High Court noted that the risk of injuries was as great outside the courthouse or while picking up her children from a public or private school. (Ibid.) Lastly, the High Court reasoned that despite alleging "long corridors, hidden escalators, and maze-like design of the building," the pleading failed to allege that these conditions had a causal relationship to the shooting. (Ibid.) Plaintiff argues that the facts here are governed by Bonanno v. Central Contra Costa Transit Authority (2003) 30 Cal.4th 139, 152, which recognizes that a dangerous condition of public property exists when "some characteristic of the property that exposed its users to increased danger from third party negligence or criminality."

Here, the Court agrees with Plaintiff that the FAC sufficiently alleges that the physical configuration of the lunch area increased the risk of injuries to Plaintiff. The FAC alleges that "[a]s a result of the funnel/chokepoint configuration of the lunch area and walkways, Plaintiff was effectively forced into and through a congested location where the crowd was able to follow, surround, and assault Plaintiff before staff could timely intervene." (FAC, ¶ 27.) Unlike Zelig, the FAC alleges that the configuration was a cause of Plaintiff's injuries by increasing the likelihood of danger from third parties. Therefore, the FAC alleges that the third party conduct together with the physical configuration of the lunch area caused Plaintiff's injuries, which is sufficient under both Zelig and Bonanno.

Lastly, Defendant argues that the FAC fails to allege a foreseeable risk of injury or notice of a dangerous condition. Defendant shows that the FAC at most alleges knowledge or congestion, but not of fights, violence, or assaults by other students.

“A public entity had constructive notice of a dangerous condition...only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.” (Gov. Code, § 835.2, subd. (b).)

Here, the FAC alleges that because the configuration was inherent to the lunch area, it existed in a recurring basis and “due to the daily recurrence and predictability,” Defendant should have known of the risks. (FAC, ¶ 29.) The FAC alleges that Defendant failed to take measures such as modifying the layout, providing access routes, or reducing congestion points. (FAC, ¶ 30.) The Court agrees that the FAC alleges Defendant’s notice as to the existence of the physical configuration and possibly of congestion, not of any assaults by students. Plaintiff attempts to raise additional facts in opposition to support notice, however, the Court cannot consider extrinsic evidence. (See Hahn, *supra*, 147 Cal.App.4th at p. 747.) Therefore, the FAC fails to allege sufficient facts to support actual or constructive notice of the alleged dangerous condition.

Accordingly, Defendant’s demurrer to the first cause of action in the first amended complaint is SUSTAINED with 30 days LEAVE TO AMEND.